

The Indian Forest (Bihar and Orissa Amendment) Act, 1935

Source: <https://indiankanoon.org/doc/134413263/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

[0](#)

[, Cited by](#)

[1](#)

[\]](#)

[State of Bihar - Act](#)

[The Indian Forest \(Bihar and Orissa Amendment\) Act, 1935](#)

[BIHAR](#)

[India](#)

[The Indian Forest \(Bihar and Orissa Amendment\) Act, 1935](#)

[Act 9 of 1935](#)

[Published on 23 October 1935](#)

[Commenced on 23 October 1935](#)

[\[This is the version of this document from 23 October 1935.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[The Indian Forest \(Bihar and Orissa Amendment\) Act, 1935](#)

[Bihar and Orissa Act](#)

[9 of 1935](#)

[\[Dated 23rd October, 1935\]](#)

[An Act to amend the Indian Forest Act, 1927.](#)

[Whereas it is expedient further to amend the Indian Act, 1927, in its application to Bihar and Orissa, in the manner hereinafter appearing;](#)

[It is hereby enacted as follows:-](#)

[1.](#)

[Short title.](#)

[- This Act may be called the Indian Forest \(Bihar and Orissa Amendment\) Act, 1935.](#)

2.

Amendment of Section 26 of the Indian Forest Act, 1927.

- For subsection (3) of Section 26 of the Indian Forest Act, 1927 hereinafter referred to as the said Act), the following sub-section shall be substituted, namely:-

"(3) Whenever in a reserved forest-

(a)

fire is caused wilfully or by gross negligence, or

(b)

theft of forest produce occurs and such theft is, in the opinion of the [State]

[Substituted By A.L.O.]

Government on such a scale as to be likely to imperil the future yield of such forest.

The [State]

[Substituted By A.L.O.]

Government may, notwithstanding that any penalty has been inflicted under this Section or under any other law for any Act referred to in clause (a) or clause (b), direct that in such forest or any portion thereof the exercise of all rights of pasture or to forest produce shall be suspended,

(i)

in the circumstances mentioned in clause (a), for such period as it thinks fit.

(ii)

in the circumstances mentioned in clause (b), for a period not exceeding four years."

3.

Amendment of Section 33 of the Indian Forest Act, 1927.

- For subsection (2) of Section 33 of the said Act, the following sub-section shall be substituted, namely:-

"(2) Whenever in a protected forest-

(a)

fire is caused wilfully or by gross negligence, or

(b)

theft of forest produce occurs and such theft is, in the opinion of the [State]

[Substituted By A.L.O.]

Government, on such a scale as to be likely to imperil the future yield of such forest, the [State]

[Substituted By A.L.O.]

Government may, notwithstanding that any penalty has been inflicted under this Section or under any other law for any Act referred to in cause (a) or clause (b), direct that in such forest or any portion thereof the exercise of any right of pasture or to forest produce shall be suspended,

(i)

in the circumstances mentioned in clause (a), for such period as it thinks fit,

(ii)

in the circumstances mentioned in clause (b), for a period not exceeding four years."

Related AI tags, queries and research notes

Translation